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GOOD OL' DAYS Uddhav Thackeray with son Aaditya (left) and Eknath Shinde (right), July 2019

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SHIV SENA

WHO OWNS THE SENA?

By Kiran D. Tare

Having come up short in the demanding sport of realpolitik, Shiv Sena chief Uddhav Thackeray has now moved to the realm of law. He is banking on the Supreme Court to find a lifeline, with the big prize at stake being ownership of the Shiv Sena brand and its Bow and Arrow symbol. As July wound to a close, Uddhav moved the apex court to deny that stamp of legitimacy to Eknath Shinde, the former loyalist who usurped the Maharashtra chief minister's chair from him in a stunning coup in late June. What he is seeking is a stay on proceedings initiated by the Election Commission (EC) to settle the issue of who the real Shiv Sena is.

The EC has sought documents from the two factions—led by Uddhav and Shinde, respectively—to buttress their claim that a majority of party members are with them. In his petition before the SC, Uddhav argues the EC cannot proceed with this until an earlier plea by him—that Shinde and 15 other rebel MLAs be disqualified for violating the party whip—is decided first. He not only calls Shinde's oath-taking ceremony "unconstitutional", his petition states that the EC proceedings violate settled law because an inquiry into a matter that's already sub judice amounts to contempt of court. Uddhav also claims the Shinde faction is trying to cobble up numbers illegally and fabricate an artificial majority in the organisation.

Under the Election Symbols (Reservation and Allotment) Order, 1968,